

WRITTEN REQUEST TO IMPLEMENT MANDATORY SEALING UNDER SDCL SEC. 23A-27-17

IN THE COURT

..... COUNTY, SOUTH DAKOTA

(THE COURT IN THE ORIGINAL CRIMINAL CASE, AND ITS COUNTY - that court's own office can confirm both)

STATE OF SOUTH DAKOTA,
PLAINTIFF,

v.

Maria-Alejandra O'Shaughnessy-Whitfield,
DEFENDANT.

Case number of the original criminal case:

.....

WRITTEN REQUEST TO IMPLEMENT MANDATORY SEALING UNDER SDCL Sec. 23A-27-17

1. The defendant, Maria-Alejandra O'Shaughnessy-Whitfield, received a suspended imposition of sentence in this case, completed the conditions the court ordered, and was discharged, and the case was dismissed. A copy of the order of discharge and dismissal is attached to this request.

Date of the order of discharge and dismissal, from the attached order:

.....

2. SDCL Sec. 23A-27-17 provides that upon the discharge and dismissal a court shall order that all official records, other than the nonpublic records retained by the Division of Criminal Investigation, be sealed, along with all records relating to the arrest, indictment or information, trial, finding of guilt, and dismissal and discharge.

3. The matter still appears on a public record search. My evidence of that (attach it - for example a dated printout of the public entry):

.....

.....

4. THE REQUEST: I ask that the statutorily required sealing order be entered and implemented in this case, as SDCL Sec. 23A-27-17 directs. If the position of this court's office is that judicial action is required, please say so in writing.

DATE SIGNATURE OF DEFENDANT

(The defendant signs and dates this request personally. Nothing on this page is signed or dated for the defendant.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Vermillion Crossing Road, Apartment 14B, Sioux Falls, South
Dakota 57105-2214

TELEPHONE: (605) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:decision-branch:SD:sd_sis_sealing:written_implementation_request

MOTION IN THE ORIGINAL CRIMINAL CASE TO ENFORCE SDCL SEC. 23A-27-17

USE THIS PAGE ONLY AFTER THE WRITTEN REQUEST. The recorded escalation is: first the written implementation request in the original case; then this motion, only if the record is not corrected. If the court refuses after this motion, the recorded next step is a lawyer - attorney handoff for refusal or mandamus - not another filing from this packet.

IN THE COURT
..... COUNTY, SOUTH DAKOTA

STATE OF SOUTH DAKOTA,
PLAINTIFF,

v.

Maria-Alejandra O'Shaughnessy-Whitfield,
DEFENDANT.

Case number of the original criminal case:
.....

MOTION TO ENFORCE SDCL Sec. 23A-27-17

1. The defendant, Maria-Alejandra O'Shaughnessy-Whitfield, received a suspended imposition of sentence in this case, completed the conditions the court ordered, and was discharged, and the case was dismissed. The order of discharge and dismissal is attached.

Date of the order of discharge and dismissal:
.....

2. Upon the discharge and dismissal, SDCL Sec. 23A-27-17 directs that the court shall order the official records sealed, other than the nonpublic records retained by the Division of Criminal Investigation. The matter still appears on a public record search, and a written implementation request was made in this case. What happened after that request (state it in your own words, and attach a copy of your request):
.....
.....

3. THE REQUESTED RELIEF: the defendant asks the Court, in the original criminal docket, to enforce SDCL Sec. 23A-27-17 by entering and implementing the sealing order the statute directs.

DATE SIGNATURE OF DEFENDANT

(The defendant signs and dates this motion personally.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Vermillion Crossing Road, Apartment 14B, Sioux Falls, South
Dakota 57105-2214

TELEPHONE: (605) 555-0199 ext. 4417

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Route: obligation:decision-branch:SD:sd_sis_sealing:original_case_enforcement_motion

FILING INSTRUCTIONS

This packet is prepared for asking the original South Dakota court to enter and implement the mandatory SDCL Sec. 23A-27-17 sealing order it did not enter after your discharge and dismissal.

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

THE ONE SITUATION THIS PACKET IS FOR

After a suspended imposition of sentence, when you complete the court's conditions and the court enters the discharge and dismissal, SDCL Sec. 23A-27-17 makes sealing the COURT'S duty: upon the discharge and dismissal a court shall order the official records sealed, other than the nonpublic records retained by the Division of Criminal Investigation. You apply for nothing to obtain it. This packet is only for the case where the discharge and dismissal issued and the sealing did not happen.

WHAT YOU DO, IN ORDER

STEP ONE. Confirm the duty was triggered: your conditions are complete and the order of discharge and dismissal issued. If it has not issued, stop - nothing here applies yet.

STEP TWO. Get the SIS order and the order of discharge and dismissal from the office of the court in the original criminal case, and keep dated evidence of the public record entry that still shows the matter.

STEP THREE. Complete and file the WRITTEN REQUEST in the original case, attaching a copy of the discharge and dismissal order. Ask the office of that court how it accepts delivery and whether any fee applies - no committed record this packet is built from states either.

STEP FOUR. Only if the record is not corrected, complete and file the ENFORCEMENT MOTION in the original criminal docket.

STEP FIVE. Sign and date each page yourself.

WHAT SEALING DOES, AND DOES NOT DO

The recorded effect: the order restores you to the status you occupied before arrest, indictment or information, and you are not guilty of perjury or of giving a false statement for failing to recite or acknowledge the matter. The recorded limits: the nonpublic records retained by the Division of Criminal Investigation are expressly outside the sealing order, and sealing is not expungement. If your underlying conviction was under SDCL Sec. 22-22-1 or Sec. 22-22-7 and you hold or seek a certified teaching licence, the recorded caveat is that the licensure authority may refuse or revoke notwithstanding the sealing - get advice before relying on the seal.

WHAT THIS PACKET MUST NEVER BE USED FOR

- As an arrest-expungement filing. The recorded rule: do not use a form designed for a separate arrest-expungement statute as a fallback.
- After a refusal, or where eligibility is disputed. The recorded escalation is attorney handoff for refusal or mandamus.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- the discharge and dismissal has not issued, your conditions are not complete, or your discharge status is unclear;
- the court refuses after the motion, or eligibility is disputed;
- the underlying conviction was under SDCL Sec. 22-22-1 or Sec. 22-22-7 and a teaching licence is in play;
- you are relying on sealing to erase the matter everywhere;
- any immigration question is involved.

WHAT THIS PACKET IS NOT

This is a prepared set of composed enforcement instruments for one recorded failure branch. It is not legal advice, it is not filed for you, and it does not decide whether the court will act. Sealing restricts access; it does not erase the DCI's nonpublic records.

Route: obligation:decision-branch:SD:sd_sis_sealing:written_implementation_request